

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY  
OF THE CITY OF CHEYENNE  
Office of City Clerk**

November 26, 2012

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS - Mr. Allen, Ms. Ash, Mr. Brown, Ms. Broyles, Mr. Collins, Mr. Pierson, Dr. Rinne, Mr. Spiker and Mr. Valdez. Also present: Kristy Anderson, Deputy City Clerk; Lois Huff, City Treasurer, and Dan White, City Attorney.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda. Mr. Collins moved to approve Consent Agenda items, seconded by Mr. Brown. Motion carried. Voting "yes" -- all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on November 13, 2012. Motion (per Consent Agenda) carried.

Mr. Brown declared a conflict of interest (business interest in vouchers payable to Ameri-Tech HVAC Services) and vacated Council Chambers. Mr. Spiker moved to approve payment of vouchers as presented, seconded by Mr. Valdez. Motion carried. Voting "yes" -- all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Brown returned to Council Chambers.

ORDINANCE - Granting a Franchise by the City of Cheyenne to Cheyenne Light, Fuel and Power Company, its successors and assigns, the right to furnish, sell and distribute electricity to the City and to all persons, businesses, and industry within a portion of the City in Cheyenne Light, Fuel and Power Company's Certificated Territory and the right to acquire, construct, install, locate, maintain, operate and extend into, within and through said City all facilities reasonably necessary to furnish, sell and distribute electricity within the City and the right to make reasonable use of all streets and other public places and public easements as herein defined as may be necessary; and fixing the terms and conditions thereof -- referred to Finance Committee (sponsor - Mr. Brown).

ORDINANCE - Granting a Franchise by the City of Cheyenne to High West Energy, Inc., its successors and assigns, the right to furnish, sell and distribute electricity to the City and to all persons, businesses, and industry within a portion of the City in High West's Certificated Territory and the right to acquire, construct, install, locate, maintain, operate and extend into, within and through said City all facilities reasonably necessary to furnish, sell and distribute electricity within the City and the right to make reasonable use of all streets and other public places and public easements as herein defined as may be necessary; and fixing the terms and conditions thereof -- referred to Public Services Committee (sponsors - Mr. Brown).

ORDINANCE - Pursuant to Section 2.2.1 Zoning Map Amendments, Section 5.1.2 Zoning Districts Established and Section 5.1.3 Official Zoning Map (Cheyenne City Map), of the Unified Development Code, changing the zoning classification from MR-1 Medium Density Residential - Established District to MUB Mixed Use with Business Emphasis District for Lots 30 and 31, Block 1, Eastridge, Cheyenne, Wyoming (located at the northwest corner of the intersection of East Pershing Boulevard and Converse Avenue) -- referred to Public Services Committee (sponsors -- Mr. Allen, Ms. Ash, Mr. Brown, Ms. Broyles, Mr. Collins, Mr. Pierson, Dr. Rinne, Mr. Spiker, Mr. Valdez and Mayor Kaysen).

[CA] RESOLUTION - Authorizing the Mayor and the City Clerk to sign a Final Plat for Chaplin Park Annex, a replat of Lots 1-6 and the 16-foot vacated alley, Block 16, Park Addition, Cheyenne, Wyoming (located between Richardson and Cosgriff Courts, and between Dey Avenue and Ames Court). Motion (per Consent Agenda) carried. (#5447)

[CA] RESOLUTION - Re-appropriating the Fiscal Year 2013 budget of the City of Cheyenne according to the provisions of W.S. §16-4-112 and 16-4-113. Motion (per Consent Agenda) carried. (#5448)

RESOLUTION - Directing the Solid Waste Division to provide curbside collection services for automated containers for all residential addresses in the city, except for certain addresses where curbside collection is not feasible. Speaking in opposition to the proposed resolution were: Matthew Potter, Frank Cole, Mike Luna, Trish Becklinger, Randy Byers, Paula Gordinier, John Rogers, Mike Hand (submitted petition - on file with City Clerk's office), Dennis Auker, Kenneth Barrow, Brad Emmons (submitted photos - on file with City Clerk's office), Don Erickson and Jan Nelson-Schroll. The following concerns were raised: hardship on residents involving lack of access to move containers from back to front of residence; lack of storage areas in front of residences; need for implementation of rules regarding placement of garbage cans; refuse debris due to wind; narrow street widths in some areas and sanitation truck operators maneuvering around parked cars and motor homes, and traffic congestion; addressing pick-up concerns relative to overgrown trees in alley ways obstructing pathways of trucks; home owners responsibility for trimming trees in alleys; definition of "feasibility" in relationship to exemptions; containers left in the street if resident is out of town; containers in streets detracting from community beautification; zoning and UDC (Unified Development Code) requirements which may conflict with the resolution, and issues with heavy traffic and highly dense areas involving parked cars on streets. Upon inquiry, Jim Elias, Public Works Director, advised the Solid Waste Director is still reviewing properties eligible for exemptions so the list is not all inclusive at this time. Reporting for Public Services Committee, Ms. Ash stated there was no recommendation on the item from the committee. Ms. Ash moved to adopt, seconded by Mr. Pierson. Discussion followed on the list of exempted properties, streets that should be on the exempted list, and concerns with the impact on traffic patterns on busy streets such as Dell Range and Pershing. Upon inquiry, Dennis Pino, Director of Solid Waste, reviewed houses located on Dell Range and Pershing Blvd. and advised they are still reviewing areas for exemptions, noting there will still be some areas that will continue to have alley pick-ups. In response to query on what benefits the resolution will provide, Mr. Elias noted there would be an estimated 25% savings in fuel, future equipment would be significantly less expensive as they could purchase single-arm vehicles instead of dual-arm vehicles, alley maintenance would decrease, route efficiency would be realized, and a decrease in insurance costs would be anticipated as trucks won't have to maneuver in alleys, which

is where the majority of sanitation-related accidents occur. Mr. Elias further added the department is looking at getting GPS software packages for the trucks, which will assist with providing better pick-up routes. Mr. Pino explained incidents resulting in damages occur fairly regularly involving alley trees and tree branches. He explained department efforts involving container pick-ups for elderly or handicapped residents, who will remain exempted under the resolution. Further discussion continued on issues with Sanitation trucks driving down alleys, including the cost inefficiency of trucks running both alley and street routes, and the necessity to identify additional areas for exemption. Upon inquiry regarding a procedural question, Dan White, City Attorney, advised the motion on the floor to adopt the resolution is now the "property" of the governing body and can only be withdrawn with unanimous approval of the council. Mr. Brown moved to call for the question (to limit debate), seconded by Mr. Collins. Mr. White clarified the motion was not debatable. Motion to call for the question to cease debate carried. Voting "yes" -- all members of the governing body with the exception of Ms. Broyles, Mr. Pierson and Dr. Rinne voting "no". Main motion to adopt failed. Voting "no" -- all members of the governing body with the exception of Ms. Ash voting "yes". Under other City business, it was suggested Public Works/Sanitation staff bring the resolution back to the governing body after compiling a complete list of all exempt properties.

[CA] RESOLUTION - Approving Outside User Water/Sewer Services, by User's Agreement, with the Microsoft Corporation, Lot 3, Block 6, North Range Business Park, Third Filing, Laramie County, Wyoming. Motion (per Consent Agenda) carried. (#5449)

[CA] RESOLUTION - Authorizing the City Treasurer to discharge uncollectible debts in the amount of \$247,178.18, pursuant to Wyo. Stat. §16-4-502 -- referred to Finance Committee.

[CA] Agreement between the City of Cheyenne, Transit Division, and Stride Learning Center for use of a 2006 Chevrolet El Dorado bus for services for Stride clients. Motion (per Consent Agenda) carried. (#5926)

[CA] Professional Services Agreement between the City of Cheyenne, Parks & Recreation Department, and AVI, PC for design and engineering services on Polk Avenue greenway segment (1% Specific Purpose Sales & Use Tax & Wyoming Business Council Community Enhancement grant). Motion (per Consent Agenda) carried (amount not to exceed \$72,440.00). (#5927)

[CA] Agreement between the City of Cheyenne, Public Works Department, and KONE, Inc. for maintenance service on various elevators in City buildings -- referred to Finance Committee.

[CA] Community Based Family Support and Preservation Grant Contract between the City of Cheyenne, Youth Alternatives, and the Wyoming Department of Family Services, Protection Services Division, to provide in-home support and mentoring services to under-served families and strengthen the ability of parents to provide care for their children -- referred to Finance Committee.

[CA] Professional Services Agreement between the City of Cheyenne, Public Works Department, and Solid Waste Professionals of Wyoming, for Happy Jack Landfill Expansion and closure of existing cells (Solid Waste Management fund) -- referred to Finance Committee.

[CA] Consideration of Bid #M-3-13 for a contract between the City of Cheyenne, Parks and

Recreation Department, and S & S Builders, LLC, Cheyenne, Wyoming, for the Pioneer Park Parking Lot Improvement Project (Parks Facilities funds). Motion (per Consent Agenda) carried (amount not to exceed \$448,833.00). (#5928)

[CA] Consideration of Bid #R-5-13 for furnishing one new brush chipper for the Forestry Division from Vermeer Colorado, Commerce City, Colorado (2011- 2014 1% Sales Tax) -- referred to Finance Committee.

[CA] Consideration of Bid #R-12-13 for furnishing one new aerial platform fire apparatus and small equipment for the City of Cheyenne Fire & Rescue Department (State Loan and Investment Board grant, 2011- 2014 1% Sales Tax) -- referred to Finance Committee.

[CA] Transfer of Ownership for a Retail liquor license application filed with the City Clerk's Office for Los Abuelos Mexican Restaurant, LLC d/b/a Los Abuelos Mexican Restaurant, 1601 Central Avenue, Cheyenne, Wyoming (License currently held by One East Sixteenth LLC, 1601 Central Avenue, Cheyenne, Wyoming). Motion (per Consent Agenda) carried.

Appointment of Carla Thurin to the Laramie County Community Juvenile Services Joint Powers Board. Mr. Collins moved to approve, seconded by Mr. Valdez. Voting "yes" -- all members of the governing body with the exception of Mayor Kaysen who did not vote (Mayoral appointment).

[CA] Designation of Official Voting Delegate and Alternate Delegate for the City of Cheyenne at the 2013 Wyoming Association of Municipalities Winter Workshop Business Meeting. Motion (per Consent Agenda) carried (Mayor Richard L. Kaysen - Official Voting Delegate; Councilman Sean Allen - Alternate Delegate).

Announcement was made of the appointments of Tyler Bedwell, Savannah Brown, Jon Chenchar, Alex Cole, Kadi Davis, Ian Dome, Juliette Givhan, Alex Farkas, Addie Fleming, John Matsen, Margarita Medrano, Rachel Moseley and Jacob Peterson to the Mayor's Youth Council, to be confirmed December 10, 2012.

Announcement was made of a Public Hearing to be held Monday, December 10, 2012 at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, Wyoming, for a Bar and Grill liquor license application filed with the City Clerk's office for The Suite, LLC d/b/a The Suite, 1901 Central Avenue, Cheyenne, Wyoming.

There being no further business to come before the governing body, the meeting was officially adjourned at 7:12 p.m.

Submitted by,

Kristy B. Anderson, CMC  
Deputy City Clerk

This notice is available in alternative, accessible formats upon request.

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